

The Suppression of Disability

The Mechanism by Which All Findings Were Produced

Case references

BV20D01752 | MacDonald J

DH v RH (No 3) [2024] EWFC 79 | DH v RH (No 4) (Costs) [2024] EWFC 114

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

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Litigant in Person

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Veritas Numquam Perit

This document must be read before any order analysis in this referral package. It does not analyse individual findings. It identifies the mechanism by which all findings were produced.

The suppression of NZ's disability was not incidental to the findings against her. It was the precondition for them. Without the suppression, every finding of misconduct collapses into mitigation. The suppression created a vacancy — a space from which the statutory protections had been deliberately removed — and into that space the negative charge was transferred from where the evidence actually placed it.

1. THE LEGAL FRAMEWORK THAT APPLIED TO NZ — AND WAS SUPPRESSED

EA 2010 s.149 — Public Sector Equality Duty: A non-discretionary statutory duty. Every judicial decision affecting a disabled party must demonstrate active, visible consideration of the disability. Not awareness. Not acknowledgement. Active consideration — meaning the disability must appear in the reasoning, shape the assessment, and be reflected in the outcome. Silence does not discharge the duty. Silence is the absence of the duty.

FPR r.3.8-3.10 / PD3AA — Participation Measures: Participation measures are continuous. They cannot lapse by assumption. Every procedural decision — including the decision to proceed without a hearing on costs — requires a participation assessment for a disabled party. The absence of any such assessment is not a procedural irregularity. It is a breach of a mandatory rule.

Together these two frameworks define the legal source code that governs every decision affecting NZ. When that source code is deliberately removed, the decisions that follow are not merely wrong. They are produced under rules that do not apply to this party.

2. WHAT MACDONALD J KNEW — WHY THE SUPPRESSION WAS WILFUL

What he ordered	What he acknowledged	What was before him
Part 3A participation measures — in force throughout the entire 10-day trial. Breaks. Restricted questioning. Screened seating.	On the record: <i>"I have no objection to NZ being supported if she needs that."</i> 22+ oral references to autism and PTSD during trial — asked by ACKC herself in cross-examination.	NHS CLAAS clinical letter (Dr Catherine Cheung, July 2025): autism lifelong, sophisticated vocabulary creates false impression of coping, documented autistic traits include intense detail-focused communication. NZ's s25 conduct statement and witness statements — before MacDonald J at trial.

3. WHAT MACDONALD J PRODUCED — THE CORRUPTED OUTPUT

Main Judgment — DH v RH (No 3) [2024] EWFC 79	Costs Judgment — DH v RH (No 4) [2024] EWFC 114
111 paragraphs. Zero disability references. The single appearance of disability: Para 64 — NZ's autistic presentation in the witness box characterised as "<i>obsession</i>" that "<i>bordered on the concerning</i>." Disability is invisible as mitigation across 110 paragraphs. It appears once — as a weapon. Part 3A measures in force throughout the trial: not referenced. Not revoked. No judicial act. They ceased without a hearing, without an order, without reasons, without record.	Zero disability references across 12 findings of litigation misconduct. Determined on paper. No hearing. No Part 3A assessment. NZ had told the court she could not participate without MPS enforcement. MacDonald J knew this — he recorded it at paras 2–3 of the costs judgment. He proceeded anyway. " <i>Stole</i> ." " <i>Disruptive</i> ." " <i>Inability to show restraint</i> ." Each of these describes a documented autistic trait. Each is used as grounds for financial punishment. Each is made in a judgment that contains zero disability references.

4. THE MECHANISM — WHY THIS IS NOT OMISSION BUT TRANSFER

The suppression of NZ's disability did not merely remove a mitigating factor. It changed the legal framework under which every finding was made.

Under EA 2010 s.149, a disabled party is not assessed by the same standard as a non-disabled party. Her litigation conduct, her ability to comply with orders, her ability to produce an ES2, her behaviour in the witness box, her ability to make submissions — all of these must be assessed through the lens of her disability. That is not discretionary. It is a statutory requirement.

When the judgment eliminates disability entirely, it does not just produce wrong findings. It applies the wrong legal framework. Every finding of litigation misconduct, failure to comply, disproportionate conduct, disruption, and inability to show restraint — is made under a framework that does not apply to NZ.

The attendance notes show H unable to answer coherently on multiple key issues. His admissions are in the transcript. His evasions are in the transcript. His perjury is in the transcript. None of it is in the judgment.

The negative charge that the evidence placed on H was erased. The space left by the removal of NZ's disability — the space where mitigation should have been — was filled instead with that negative charge, transferred to NZ.

The suppression of disability has two distinct and documented consequences — both negative.

Consequence One — Character Transfer

When disability is absent from the narrative, the behaviours it would explain become available for reattribution. Intensity in the witness box becomes "*obsession*." Detail-focus becomes "*inability to show restraint*." Distress becomes "*disruption*." Difficulty complying with orders — caused directly by no income, no participation measures, no legal representation — becomes litigation misconduct.

The disability that would have explained each of these as a documented clinical feature is not present. The explanation that fills the vacancy is character defect. The negative charge transfers.

Consequence Two — Chronic Unfair Disadvantage Normalised

The suppression of disability does not only affect how a party is treated during proceedings. It affects the financial outcome.

Under s.25 of the Matrimonial Causes Act 1973, the court is required to assess the parties' earning capacity and financial needs. NZ's counsel, Brent Molyneux KC, argued specifically at the final hearing that NZ's prospects of full-time employment were very unlikely in light of her autism and PTSD and their documented effect on her daily functioning. MacDonald J heard that submission. He appeared to agree. The judgment makes no mention of it.

The financial award proceeds on the assumption that NZ's earning capacity and H's are comparable. They are not. H is a Goldman Sachs-trained investment banker with an uninterrupted 30-year career in global capital markets. NZ left employment in 2004, has not worked for 20 years, is the sole carer of two daughters both of whom have disabilities, is autistic with PTSD, and her daily functioning is clinically documented as significantly impaired.

The division of assets is not based on NZ's actual needs. It is based on a narrative in which her disability does not exist. The final order is built on a false premise. It is unsafe because the premise is false. It is unfair because the needs it was supposed to meet were never properly identified.